

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SUSAN FISHMAN,

Petitioner

VS.

DAVID FISHMAN,

Respondent

) Case Number: FDI-16-785240

) Hearing Date: April 21, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR APPOINTMENT OF CLERK OF THE COURT TO ACT AS ELISOR

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Susan Fishman and Respondent David Fishman
- 2) On January 20, 2026, Petitioner filed a Request for Order seeking “[a]ppointment of Clerk of the Court to act as Elisor.” Petitioner requests the Court issue the following orders:
 - a) Pursuant to paragraph 13.5 of the parties’ Marital Settlement Agreement dated March 18, 2025 (the “MSA”) and the Court’s authority pursuant to Code of Civil Procedure 128(a)(4), the Court hereby appoints the Clerk of the Court of the Superior Court of San Francisco County or its designee to act as elisor to execute any and all necessary documents and instruments on behalf of Respondent David Fishman to effectuate the terms of the MSA, including, but not limited to, the following documents and instruments:
 - i. Grant Deed for real property located at 2647 Pierce Street, San Francisco, CA 94123;
 - ii. Grant Deed for real property located at 1250 Grove Street, Sonoma, CA 95476;

- iii. Revocation of The Fishman Family Trust Dated November 25, 2009;
- iv. Plan of Trustees and Investment Advisors for the Fishman Gift Trust;
- v. Termination of Grantor Trust Status and Distribution of Trust Property to Descendant Trusts from the Fishman Gift Trust;
- vi. Strasen Law, LLP Fee Agreement, dated January 14, 2026

b) The Court hereby appoints the Clerk of the Court of the Superior Court of San Francisco County or its designee to act as elisor to execute the following instruments on behalf of Respondent's brother, Lee Fishman, to effectuate the terms of the MSA:

- i. Plan of Trustees and Investment Advisors for the Fishman Gift Trust;
- ii. Termination of Grantor Trust Status and Distribution of Trust Property to Descendant Trusts from the Fishman Gift Trust.

c) Pursuant to MSA paragraph 13.5, Respondent shall forthwith pay Petitioner \$5,025.00 as reimbursement for attorney's fees and costs incurred in connection with the instant Request for Order due to Respondent's noncompliance with his obligations under the MSA.

3) On February 2, 2026, Petitioner filed a Proof of Personal Service indicating Respondent was personally served with the Request for Order on January 27, 2026.

4) Respondent did not file a Responsive Declaration.

B. Findings and Order

1) The Court GRANTS Petitioner's request for appointment of Elisor. Pursuant to paragraph 13.5 of the parties' Marital Settlement Agreement dated March 18, 2025 (the "MSA") and the Court's authority pursuant to Code of Civil Procedure 128(a)(4), the Court hereby appoints the Clerk of the Court of the Superior Court of San Francisco County or its designee to act as elisor to execute any and all necessary documents and instruments on behalf of Respondent David Fishman to effectuate the terms of the MSA, including, but not limited to, the following documents and instruments:

- a. Grant Deed for real property located at 2647 Pierce Street, San Francisco, CA 94123;
- b. Grant Deed for real property located at 1250 Grove Street, Sonoma, CA 95476;
- c. Revocation of The Fishman Family Trust Dated November 25, 2009;

1 d. Plan of Trustees and Investment Advisors for the Fishman Gift Trust;

2 e. Termination of Grantor Trust Status and Distribution of Trust Property to Descendant
3 Trusts from the Fishman Gift Trust;

4 f. Strasen Law, LLP Fee Agreement, dated January 14, 2026

5 2) The Court DENIES Petitioner's request to appoint, as Elisor, the Clerk of the Court of the
6 Superior Court of San Francisco County or its designee to act as elisor to execute the following
7 instruments on behalf of Respondent's brother, Lee Fishman, to effectuate the terms of the MSA.
8 Lee Fishman is not a party to this action. The Court does not have any jurisdiction over Lee
9 Fishman.

10 3) The Court GRANTS Petitioner's request that Respondent pay Petitioner \$5,025.00 as
11 reimbursement for attorney's fees and costs incurred in connection with the instant Request for
12 Order due to Respondent's noncompliance with his obligations under the MSA. Respondent shall
13 pay this fee award within 30 days from today's date.

14 4) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

15 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
16 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
17 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
18 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
19 proposed order after hearing directly to the court. Failure to submit the order after hearing within
20 10 days may allow the other party to prepare a proposed order and submit it to the court in
21 accordance with CA Rules of Court, Rule 5.125(d).